

Opinion of the Court

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comparable evidence by other reasonably available means. Neither of these conditions was met on the facts of this case. Pp. 488-490.
142 Cal. App. 3d 138, 190 Cal. Rptr. 319, reversed and remanded.

MARSHALL, J., delivered the opinion for a unanimous Court. O'CONNOR, J., filed a concurring opinion, *post*, p. 491.

Charles R. B. Kirk, Deputy Attorney General of California, argued the cause for petitioner. With him on the briefs were *John K. Van De Kamp*, Attorney General, *William D. Stein*, Assistant Attorney General, and *Gloria F. De Hart*, Deputy Attorney General.

John F. DeMeo argued the cause for respondents. With him on the brief were *Thomas R. Kenney*, *J. Frederick Haley*, and *John A. Pettis*.*

JUSTICE MARSHALL delivered the opinion of the Court.

The Due Process Clause of the Fourteenth Amendment requires the State to disclose to criminal defendants favorable evidence that is material either to guilt or to punishment. *United States v. Agurs*, 427 U. S. 97 (1976); *Brady v.*

*Briefs of *amici curiae* urging reversal were filed for the State of Minnesota et al. by *Hubert H. Humphrey III*, Attorney General of Minnesota, *James B. Early*, Special Assistant Attorney General, and *Thomas L. Fabel*, Deputy Attorney General, *Jim Smith*, Attorney General of Florida, *Linley E. Pearson*, Attorney General of Indiana, *Edwin Lloyd Tittman*, Attorney General of Mississippi, and *Mike Greely*, Attorney General of Montana; for the Appellate Committee of the California District Attorney's Association by *John R. Vance, Jr.*; and for the National District Attorneys Association, Inc., et al. by *David Crump*, *Wayne W. Schmidt*, *James P. Manak*, and *Edwin L. Miller, Jr.*

George L. Schraer and *Lisa Short* filed a brief for the State Public Defender of California as *amicus curiae* urging affirmance.

Briefs of *amici curiae* were filed for the State of North Carolina by *Rufus L. Edmisten*, Attorney General, and *Isaac T. Avery III*, Special Deputy Attorney General; for the County of Los Angeles by *Robert H. Philibosian*, *Harry B. Sondheim*, and *John W. Messer*; and for the California Public Defender's Association et al. by *Albert J. Menaster*, *William M. Thornbury*, and *Ephraim Margolin*.